Xiamen University Malaysia
2022/04 Semester
Introduction to the Constitution of Malaysia
Course Code：MPU3.1

Lecturer：Dr Loh Yoong Keong
MPU Subject, 2 Subject Credits

Introduction

This course focuses on topics in the Malaysian Constitution which includes the concept and characteristics of the Constitution, the historical development of the Constitution, the Fundamental Liberties, the Executive, Legislative and the Judiciary.

Learning Outcomes

Upon the completion of the course, students are able to:
1. demonstrate appropriate knowledge and understanding of the Constitution of Malaysia and its significance to Malaysia and her people, and its role in everyday life;
2. swiftly adapt and assimilate into the Malaysian living environment, and show considerate understanding when communicating, in particular international students; and
3. enhance their capacity as effective human capital to themselves, the communities and society.

		Content outline of the course / module
		1. Course Introduction • Introduction • Course outline • Contents of the course • Assessment method • References
		2. The Concepts and Characteristics of the Constitution i. The Principles, Contents & Position ii. Amendment to the Constitution
		3. Fundamental Liberties I □ Article 5 to Article 8 of the Constitution
		4. Fundamental Liberties II □ Article 9 to Article 13 of the Constitution
		5. The Historical Development of the Constitution I i. The Political Structure before 1946 ii. Malayan Union 1946 iii. Federation of Malaya 1948
		6. The Historical Development of the Constitution II i. The Election of the Legislative Council in 1955 ii. Lord Reid Commission
		7. Executive I i. Yang Di-Pertuan Agong (YDPA) ii. Executive Functions of YDPA iii. Disabilities of YDPA

		8. Executive II i. Prime Minister & Cabinet ii. Other Executive
		9. Legislative i. Yang Di-Pertuan Agong (YDPA) ii. House of Representatives iii. Senate iv. Legislative Procedure
		10. Judiciary I i. Superior Courts & Subordinate Courts ii. Jurisdictions of the Courts
		11. Judiciary II i. The Appointment of Judges ii. Other Courts
		12. Elections i. Election Commission ii. Delimitation of Constituencies iii. Qualifications of Electors iv. Challenging Elections
		13. Article 153 i. The Special Position of the Malay ii. The Legitimate Interests of Other Communities
		14. Article 152 i. National Language ii. The Constitutional Protection of other Languages
		15. Revision

Assessment （Subject to change）

- Assignment – 70%
- Final Exam – 30%

Consultation

- Time : Tuesday 10:00am-12:00noon; 2:00pm-4:00pm (By appointment)
- Office : A4 # 445
- Tel : [redacted]
- e-mail : [redacted]; ykloh@xmu.edu.my

Main References:

1. Federal Constitution. International Law Book Services.
2. Tun Mohamed Suffian. 2007. An Introduction to the Constitution of Malaysia. 3rd Edition. Malaysia: Pacifica Publications.

Additional References:

1. Shad Saleem Faruqi. 2008. Document of Destiny – The Constitution of the Federation of Malaysia. Malaysia: Star Publications (Malaysia) Bhd.
2. Joseph M. Fernando. 2007. The Making of the Malayan Constitution. Malaysia: The Malaysian Branch of the Royal Asiatic Society.